Duolingo ABC Privacy Policy

Please note that the Privacy Policy was last revised on March 4, 2024

1. **General**

   This Privacy Policy ("Privacy Policy") explains how Duolingo collects, uses, shares and processes your personal data. It details your privacy rights and how you can get in touch with us regarding your data.

   Duolingo, Inc. ("Duolingo", "we", "us" or "our") is a company registered at 5900 Penn Ave, Second Floor, Pittsburgh, PA 15206, United States of America. For the purposes of the General Data Protection

Regulation (“GDPR”) and any relevant local legislation (“Data Protection Laws”) we are the Data Controller of your personal data. Capitalized terms not defined here have the meanings set forth in the terms and conditions (the “Terms and Conditions”), located at www.duolingo.com/terms. By using or accessing Duolingo ABC, you agree to the contents of this Privacy Policy and agree to abide by the Terms and Conditions. We may update our Privacy Policy to reflect changes to our information practices. If we do this and the changes are material, we will post a notice that we have made changes to this Privacy Policy on the Website for at least 7

days before the changes are made, and we will indicate the date these terms were last revised at the bottom of the Privacy Policy. Any revisions to this Privacy Policy will become effective at the end of that 7 day period.

2. Information We Collect

This Privacy Policy explains how we collect, use and share your personal data from Duolingo ABC.

Information you provide

When using the app for the first time, you will provide us with a nickname or first name for the learner, an approximate age, and optionally an email address. This information is not needed for any kind of account creation, nor

does it need to be accurate. Nickname and approximate age are only used to generate learning content, and not to verify a user's identity. For example, you can provide any text for the learner's nickname, and the app will use that text when teaching how to write their name. We do not support any social or federated login.

Activity Data

When you use Duolingo ABC, we generate data about your use of our Services including your engagement in educational activities on Duolingo ABC. We collect your IP address, but we do not collect any geolocation data.

Product Research and Development

If you opt-in to providing an email address during

the registration process, we may contact you to participate in product research activities. These may include surveys, interviews, and other types of feedback sessions. When you participate in these research activities, the information you provide will be used to test, improve, and develop our products. We will record the video, audio and text transcriptions of this feedback together with any additional contact information you provide and will retain this data for two years. Please contact us at research@duolingo.com to:

- **Request more information about the research activities you**

have volunteered for.

- **Opt out of being contacted for research activities.**
- **Request a copy of any research related data you have provided to us.**

3. **Use of information obtained by Duolingo**

   If you opt-in to providing an email address during the registration process, Duolingo ABC may occasionally send you service related and product change announcements through the general operation of Duolingo ABC. We process your data to help provide you with Duolingo ABC and offer personalized features, to

understand and improve our Service and to keep our Service safe and secure. If you do provide your email address you can unsubscribe at any time by emailing literacy-feedback@duolingo.com or by clicking the unsubscribe link in any Duolingo ABC emails.

Duolingo ABC is separate from the traditional Duolingo language learning app and account information is not shared between the two. Duolingo ABC is designed to be set up by parents and will ask you to provide your child's approximate age. This information is kept anonymously for research purposes and not tied to your personal data in any way. During the onboarding process,

you can choose to enable speaking exercises. Speech data is stored on your device and uses Apple's speech recognition service to convert your voice into text. No speech data is shared with Duolingo or its third parties. Your Duolingo ABC data is backed up by Apple's iCloud which allows you to synchronize and restore the data onto another Apple device. You can delete your Duolingo ABC data from the app's Settings screen. You can also disable microphone and speech recognition permissions from Settings at any time. All data sent from the app is transmitted securely and encrypted.

Sharing your personal data with third parties

Duolingo does not share your personal data with any third parties, and Duolingo ABC does not display advertising of any kind.

Duolingo ABC sends data into your Apple iCloud for backing up your progress, Apple's speech recognition service for grading your reading ability, and Microsoft's App Center for crash and bug reporting.

These data processors help us bring you Duolingo ABC. For example, we may provide Microsoft with pieces of information in order to detect where or how you encountered a bug when using our mobile application. In connection with these operations, our service providers will have

access to personal data for a limited time. When we utilize service providers for processing any personal data, we implement contractual protections limiting the use of that personal data to the provision of services to Duolingo. We will be required to access and disclose personal data in response to lawful requests, such as subpoenas or court orders, or in compliance with applicable laws. Additionally, we will access and share account or other personal data when we believe it is necessary to comply with law, to protect our interests or property, to prevent fraud or other illegal activity perpetrated through Duolingo ABC

or using the Duolingo name, or to prevent imminent harm. This will include accessing and sharing personal data with other companies, lawyers, agents or government agencies.

If the ownership of all or substantially all of the Duolingo business, or individual business units or assets owned by Duolingo that are related to Duolingo ABC, were to change, your personal data will be transferred to the new owner. In any such transfer of information, your personal data would remain subject to this section.

4. ## Data subject rights and data retention

You have the following rights in relation to the personal data we hold about you, unless

provided otherwise by local law:

- **To request access to, or erasure of, the personal data we hold about you and from where we collect it.**
- **To request us to restrict the processing of the personal data we hold about you.**
- **To object to us processing personal data relating to you.**
- **Where you have given us consent to process your personal data, you have the right to withdraw that**

consent at any time.

- **To export the personal data you have provided to Duolingo in a format that can be transferred electronically to a third party.**
- **To delete your account with Duolingo by following the instructions available through Duolingo ABC.**
- **To understand how we process your personal information and how it may be shared.**
- **To opt out of having your personal**

information shared with certain third parties. (The Duolingo ABC app does not share any data with third parties in this way.)

5. **To make such a request, please send an email to privacy@duolingo.com. Please note that some of these rights are not absolute. In some cases, we may refuse a request to exercise particular rights if complying with it meant that we are no longer able to meet our contractual obligation to provide you with particular products and services. We will keep you informed as to the actions that we can take when you make your request.**

People in the EU have the right to make a GDPR complaint to the relevant Supervisory Authority. A list of Supervisory Authorities is available here: http://ec.europa.eu/justice/data-protection/bodies/authorities/index_en.htm . If you need further assistance regarding your rights, please contact us using the contact information provided below and we will consider your request in accordance with applicable law. In some cases our ability to uphold these rights for you may depend upon our obligations to process personal information for security, safety, fraud prevention reasons, compliance with regulatory or legal requirements, or

because processing is necessary to deliver the Duolingo ABC service you have requested. Where this is the case, we will inform you of specific details in response to your request.

6. **EU-U.S. Privacy Shield And Swiss-U.S. Privacy Shield**

   Duolingo complies with the EU-US Privacy Shield Framework and the Swiss-US Privacy Shield Framework as set forth by the US Department of Commerce regarding the collection, use, and retention of personal information from European Union member countries (including Iceland, Liechtenstein, and Norway) and Switzerland transferred

to the United States pursuant to Privacy Shield. Duolingo has certified that it adheres to the Privacy Shield Principles with respect to such data. If there is any conflict between the policies in this privacy policy and data subject rights under the Privacy Shield Principles, the Privacy Shield Principles shall govern. To learn more about the Privacy Shield program, and to view our certification page, please visit https://www.privacyshield.gov/.

Pursuant to the Privacy Shield Frameworks, EU and Swiss individuals have the right to obtain our confirmation of whether we maintain personal information relating to you in the United States. Upon

request, we will provide you with access to the personal information that we hold about you. You may also may correct, amend, or delete the personal information we hold about you. An individual who seeks access, or who seeks to correct, amend, or delete inaccurate data transferred to the United States under Privacy Shield, should direct their query to privacy@duolingo.com. If requested to remove data, we will respond within a reasonable timeframe.

We will provide an individual opt-out choice, or opt-in for sensitive data, before we share your data with third parties other than our agents, or before we use it for a purpose

other than which it was originally collected or subsequently authorized. To request to limit the use and disclosure of your personal information, please submit a written request to privacy@duolingo.com. Duolingo's accountability for personal data that it receives in the United States under the Privacy Shield and subsequently transfers to a third party is described in the Privacy Shield Principles. In particular, Duolingo remains responsible and liable under the Privacy Shield Principles if third-party agents that it engages to process the personal data on its behalf do so in a manner inconsistent with the Principles,

unless Duolingo proves that it is not responsible for the event giving rise to the damage.

With respect to personal data received or transferred pursuant to the Privacy Shield Frameworks, Duolingo is subject to the regulatory enforcement powers of the U.S. Federal Trade Commission. In certain situations, Duolingo may be required to disclose personal data in response to lawful requests by public authorities, including to meet national security or law enforcement requirements.

In compliance with the EU-US and Swiss-US Privacy Shield Principles, Duolingo commits to resolve complaints about your privacy and our

collection or use of your personal data. European Union or Swiss individuals with inquiries or complaints regarding this Privacy Statement should first contact Duolingo's Data Protection Officer at:
Data Protection Officer, Duolingo, Inc., 23 Connaught House, 300 Hale Road, Hale Barns, Altrincham, Cheshire, WA15 8SP, United Kingdom
Phone: +1-412-567-6602
E-mail: privacy@duolingo.com
Duolingo has further committed to refer unresolved privacy complaints under the Privacy Shield Principles to an independent dispute resolution mechanism, the BBB EU PRIVACY SHIELD, operated by the Council

of Better Business Bureaus. If you do not receive timely acknowledgement of your complaint, or if your complaint is not satisfactorily addressed, please visit https://www.bbb.org/EU-privacy-shield/for-eu-consumers for more information and to file a complaint. The services of BBB EU PRIVACY SHIELD are provided at no cost to you.

If your complaint involves human resources data transferred to the United States from the EU and/or Switzerland in the context of the employment relationship, and Duolingo does not address it satisfactorily, Duolingo commits to cooperate with the panel

established by the EU data protection authorities (DPA Panel) and/or the Swiss Federal Data Protection and Information Commissioner, as applicable and to comply with the advice given by the DPA panel and/or Commissioner, as applicable with regard to such human resources data. To pursue an unresolved human resources complaint, you should contact the state or national data protection or labor authority in the appropriate jurisdiction. Complaints related to human resources data should not be addressed to the BBB EU PRIVACY SHIELD.

Contact details for the EU data protection authorities can be found

at http://ec.europa.eu/justice/data-protection/bodies/authorities/index_en.htm.

If your Privacy Shield complaint cannot be resolved through the above channels, under certain conditions, you may invoke binding arbitration for some residual claims not resolved by other redress mechanisms. See Privacy Shield Annex 1 at https://www.privacyshield.gov/article?id=ANNEX-I-introduction.

7. **Children using the app**

Duolingo ABC provides some features and services intended for use by children. We will only store the email address of their parent or guardian if they

choose to provide it during registration, and we do not store any Personally Identifiable Information about the child. The parent or guardian can control app settings and also delete app data from a special settings screen meant to be accessible only by adults. Duolingo ABC does not contain user generated content or social features of any kind.

Duolingo ABC is primarily designed to be used by individuals, rather than schools or teachers. No personal information or education records are collected.

8. **Information security**

Duolingo has implemented administrative and technical safeguards it believes are appropriate

to protect the confidentiality, integrity and availability of your personal data and access credentials. However, given sufficient resources, a determined attacker could defeat those safeguards and may, as a result, gain access to the data we seek to protect.

9. Contact Us

Duolingo's headquarters are located within the USA at:
Duolingo, Inc.
5900 Penn Ave, Second Floor
Pittsburgh, PA 15206
United States of America
Phone: +1-412-567-6602
Within the EU, Duolingo, Inc. is a registered Data Controller with the UK Information Commissioner's Office (ICO), number ZA294891, at the address:

Duolingo, Inc.
85 Great Portland Street
London
W1W 7LT
United Kingdom
For all data privacy inquiries and any questions or concerns you have about this Privacy Policy, please contact our Data Protection Officer at privacy@duolingo.com
For all support inquiries, please go to https://duolingo.com/help.

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